

Court No. - 46

Case :- WRIT - C No. - 22675 of 2020

Petitioner :- Lokesh Kumar

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Om Prakash Rai, Ashish Rai

Counsel for Respondent :- C.S.C.

Hon'ble Naheed Ara Moonis, J.

Hon'ble Vivek Varma, J.

Heard Sri Om Prakash Rai, learned counsel for the petitioner, learned Standing Counsel for the respondent nos. 1 and 5 and Sri Krishna Agarwal, learned counsel appearing on behalf of the respondent nos. 2 to 4.

The present writ petition has been filed seeking following reliefs:

"(A) Issue a writ, order or direction in the nature of Certiorari quashing the impugned Recovery notice dated 25.04.2019 passed by the respondent no.4.

(B) Issue a writ, order or direction in the nature of mandamus commanding and directing the respondent no.4 to decide the representation of the petitioner and not take any coercive action till the disposal of present writ petition."

Learned counsel for the petitioner is disputing the accuracy of electricity bill issued by the respondent no.4.

Sri Krishna Agarwal, learned counsel appearing on behalf of the respondents-corporation submits that the petitioner has a remedy to approach the respondent no.4 under the provisions of Clause 6.5 of the Electricity Supply Code, 2005. He further submits that if the petitioner approaches the respondent no.4, he shall consider the grievance of the petitioner and shall pass appropriate orders, in accordance with law.

Considering the facts and circumstances of the case, the present writ petition is disposed of with liberty to the petitioner to approach the respondent no. 4 along with a copy of this order within two weeks from today and if he does so, the respondent no.4 shall consider the grievance of the petitioner and pass an appropriate order, in accordance with law, within a period of six weeks therefrom.

Order Date :- 17.12.2020

Lbm/-